



2025:UHC:6931

SL. No.	Date	Office Notes, reports, orders or proceedings or directions and Registrar's order with Signatures	COURT'S OR JUDGE'S ORDERS
			<u>BA1/1387/2025</u> <u>Hon'ble Rakesh Thapliyal, J.</u> 1. Mr. M. K. Ray, learned counsel for the applicant. 2. Mr. Siddharath Bisht, learned Assistant Government Advocate and Mr. Himanshu Sain, learned Brief Holder for the State. 3. Present applicant "Raju, son of Angan Lal ," is praying for regular bail in relation to First Information Report dated 11.07.2025 bearing FIR No. 0130 of 2025, Police Station - Dineshpur, District - Udham Singh Nagar wherein the present applicant has been implicated for the offence punishable under Section 8 / 18 of the NDPS, Act. 4. Learned counsel for the applicant submits that applicant is innocent and has been falsely implicated. He further submits that contraband (opium) which is shown to be recovered from the applicant is below commercial quantity i.e. 410.66 gram and furthermore, there is no substantial compliance of mandatory provisions of the NDPS Act and applicant has no previous criminal history. 5. On the other side, Mr. Siddharath Bisht, learned AGA for the State have not disputed this fact that contraband (opium) which is shown to be recovered from the applicant is non commercial quantity and applicant has no previous criminal history, however, he submits that there is substantial compliance of mandatory provisions of the NDPS Act. 6. After hearing the arguments of learned counsel for the parties and taking into consideration the fact that contraband (opium) which is shown to be recovered from the applicant is non commercial quantity and applicant has no previous criminal history, this Court is of the view that applicant deserves for bail. 7. Accordingly, without expressing any opinion on the merit of the case, the bail



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			application is allowed. 8. Let the applicant “Raju, son of Angan Lal ,” be released on bail on furnishing his personal bond and two sureties each of the like amount to the satisfaction of the court concerned. (Rakesh Thapliyal, J.) 07.08.2025 SKS
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